

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2695
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-153, Arizona Revised Statutes, is amended to
3 read:

4 16-153. Voter registration; confidentiality; definitions

5 A. Eligible persons, and any other registered voter who resides at
6 the same residence address as the eligible person, may request that the
7 general public be prohibited from accessing the eligible person's
8 identifying information, including any of the following:

9 1. That person's documents and voting precinct number contained in
10 that person's voter registration record.

11 2. If the person is a public official, the address of a property
12 held in trust by the public official.

13 B. Eligible persons may request this action by filing an affidavit
14 that states all of the following on an application form developed by the
15 administrative office of the courts in agreement with an association of
16 counties and an organization of peace officers:

17 1. The person's full legal name, residential address and date of
18 birth.

19 2. Unless the person is the spouse of a peace officer or the spouse
20 or minor child of a deceased peace officer or the person is a former
21 public official or former judge, the position the person currently holds
22 and a description of the person's duties, except that an eligible person
23 who is protected under an order of protection or injunction against
24 harassment shall instead attach a copy of the order of protection or
25 injunction against harassment.

26 3. The reasons for reasonably believing that the person's life or
27 safety or that of another person is in danger and that sealing the

1 identifying information and voting precinct number of the person's voting
2 record will serve to reduce the danger.

3 C. The affidavit shall be filed with the presiding judge of the
4 superior court in the county in which the affiant resides. To prevent
5 multiple filings, an eligible person who is a peace officer, prosecutor,
6 public defender, code enforcement officer, corrections or detention
7 officer, corrections support staff member or law enforcement support staff
8 member shall deliver the affidavit to the peace officer's commanding
9 officer, or to the head of the prosecuting, public defender, code
10 enforcement, law enforcement, corrections or detention agency, as
11 applicable, or that person's designee, who shall file the affidavits at
12 one time. In the absence of an affidavit that contains a request for
13 immediate action and is supported by facts justifying an earlier
14 presentation, the commanding officer, or the head of the prosecuting,
15 public defender, code enforcement, law enforcement, corrections or
16 detention agency, as applicable, or that person's designee, shall not file
17 affidavits more often than quarterly.

18 D. On receipt of an affidavit or affidavits, the presiding judge of
19 the superior court shall file with the clerk of the superior court a
20 petition on behalf of all requesting affiants. The petition shall have
21 attached each affidavit presented. In the absence of an affidavit that
22 contains a request for immediate action and that is supported by facts
23 justifying an earlier consideration, the presiding judge may accumulate
24 affidavits and file a petition at the end of each quarter.

25 E. The presiding judge of the superior court shall review the
26 petition and each attached affidavit to determine whether the action
27 requested by each affiant should be granted. The presiding judge of the
28 superior court shall order the sealing for five years of the information
29 contained in the voter record of the affiant and, on request, any other
30 registered voter who resides at the same residence address if the
31 presiding judge concludes that this action will reduce a danger to the
32 life or safety of the affiant.

33 F. The recorder shall remove the restrictions on all voter records
34 submitted pursuant to subsection E of this section by January 5 in the
35 year after the court order expires. The county recorder shall send by
36 mail one notice to either the health professional, election officer,
37 public official, former public official, peace officer, spouse of a peace
38 officer, spouse or minor child of a deceased peace officer, public
39 defender, prosecutor, code enforcement officer, corrections or detention
40 officer, corrections support staff member, law enforcement support staff
41 member, employee of the department of child safety or employee of adult
42 protective services who has direct contact with families in the course of
43 employment or the employing agency of the peace officer, public defender,
44 prosecutor, code enforcement officer, corrections or detention officer,
45 corrections support staff member or law enforcement support staff member
46 who was granted an order pursuant to this section of the order's

1 expiration date at least six months before the January 5 removal date. If
2 the notice is sent to the employing agency, the employing agency shall
3 immediately notify the person who was granted the order of the upcoming
4 expiration date. The county recorder may coordinate with the county
5 assessor and county treasurer to prevent multiple notices from being sent
6 to the same person.

7 G. On entry of the court order, the clerk of the superior court
8 shall file the court order with the county recorder. On receipt of the
9 court order the county recorder shall seal the voter registration of the
10 persons listed in the court order not later than one hundred twenty days
11 from the date of receipt of the court order. To include a subsequent
12 voter registration in the court order, a person listed in the court order
13 shall present to the county recorder at the time of registration a
14 certified copy of the court order or shall provide the county recorder the
15 recording number of the court order. The information in the registration
16 shall not be disclosed and is not a public record.

17 H. If the court denies an affiant's requested sealing of the voter
18 registration record, the affiant may request a court hearing. The hearing
19 shall be conducted by the court where the petition was filed.

20 I. On motion to the court, if the presiding judge of the superior
21 court concludes that a voter registration record has been sealed in error
22 or that the cause for the original affidavit no longer exists, the
23 presiding judge may vacate the court order prohibiting public access to
24 the voter registration record.

25 J. On request by a person who is protected under an order of
26 protection or injunction against harassment and presentation of an order
27 of protection issued pursuant to section 13-3602, an injunction against
28 harassment issued pursuant to section 12-1809 or an order of protection or
29 injunction against harassment issued by a court in another state or a
30 program participant in the address confidentiality program pursuant to
31 title 41, chapter 1, article 3, the county recorder shall seal the voter
32 registration record of the person who is protected and, on request, any
33 other registered voter who resides at the residence address of the
34 protected person. The record shall be sealed not later than one hundred
35 twenty days from the date of receipt of the court order. ON RENEWAL OF
36 THE CERTIFICATION OF A PROGRAM PARTICIPANT IN THE ADDRESS CONFIDENTIALITY
37 PROGRAM PURSUANT TO TITLE 41, CHAPTER 1, ARTICLE 3, WHICH MAY INCLUDE
38 OTHER MEMBERS OF THE HOUSEHOLD AS PRESCRIBED BY SECTION 41-163, THE COUNTY
39 RECORDER SHALL CONTINUE OR RENEW THE SEALING OF THE VOTER REGISTRATION
40 RECORD OF THE PROGRAM PARTICIPANT AND, IF REQUESTED, ANY OTHER REGISTERED
41 VOTER WHO RESIDES AT THE RESIDENCE ADDRESS OF THE PROGRAM PARTICIPANT. IF
42 A PROGRAM PARTICIPANT PURSUANT TO TITLE 41, CHAPTER 1, ARTICLE 3 DIES, THE
43 VOTER REGISTRATION RECORDS [AF] [OF] THE OTHER REGISTERED VOTERS WHO
44 RESIDE AT THE RESIDENCE ADDRESS OF THE PROGRAM PARTICIPANT SHALL CONTINUE
45 TO REMAIN SEALED. [THE RECORD SHALL BE RELEASED AS DIRECTED BY THE COURT
46 OR PURSUANT TO THE PRIVACY ACT OF 1974 (5 UNITED STATES CODE SECTION 552a)

1 RELATING TO A FRAUD INVESTIGATION.] The information in the registration
2 shall not be disclosed and is not a public record.

3 K. For the purposes of this section:

4 1. "Code enforcement officer" means a person who is employed by a
5 state or local government and whose duties include performing field
6 inspections of buildings, structures or property to ensure compliance with
7 and enforce national, state and local laws, ordinances and codes.

8 2. "Commissioner" means a commissioner of the superior court or
9 municipal court.

10 3. "Corrections support staff member" means an adult or juvenile
11 corrections employee who has direct contact with inmates.

12 4. "Election officer" means a state, county or municipal employee
13 who holds an election officer's certificate issued pursuant to section
14 16-407.

15 5. "Eligible person" means a health professional, election officer,
16 public official, former public official, peace officer, spouse of a peace
17 officer, spouse or minor child of a deceased peace officer, justice,
18 judge, commissioner, hearing officer, public defender, prosecutor, member
19 of the commission on appellate court appointments, code enforcement
20 officer, adult or juvenile corrections officer, corrections support staff
21 member, probation officer, member of the board of executive clemency, law
22 enforcement support staff member, employee of the department of child
23 safety or employee of adult protective services who has direct contact
24 with families in the course of employment, national guard member who is
25 acting in support of a law enforcement agency, person who is protected
26 under an order of protection or injunction against harassment or
27 firefighter who is assigned to the Arizona counter terrorism information
28 center in the department of public safety.

29 6. "Former public official" means a person who was duly elected or
30 appointed to Congress, the legislature or a statewide office, who ceased
31 serving in that capacity and who was the victim of a dangerous offense as
32 defined in section 13-105 while in office.

33 7. "Health professional" means an individual who is licensed
34 pursuant to title 32, chapter 13, 15, 17, 19.1, 25 or 33.

35 8. "Hearing officer" means a hearing officer who is appointed
36 pursuant to section 28-1553.

37 9. "Judge" means a judge or former judge of the United States
38 district court, the United States court of appeals, the United States
39 magistrate court, the United States bankruptcy court, the United States
40 immigration court, the Arizona court of appeals, the superior court or a
41 municipal court.

42 10. "Justice" means a justice of the United States or Arizona
43 supreme court or a justice of the peace.

44 11. "Law enforcement support staff member" means a person who
45 serves in the role of an investigator or prosecutorial assistant in an
46 agency that investigates or prosecutes crimes, who is integral to the

1 investigation or prosecution of crimes and whose name or identity will be
2 revealed in the course of public proceedings.

3 12. "Peace officer":

4 (a) Has the same meaning prescribed in section 1-215.

5 (b) Includes a federal law enforcement officer or agent who resides
6 in this state and who has the power to make arrests pursuant to federal
7 law.

8 13. "Prosecutor" means a current or former United States attorney,
9 county attorney, municipal prosecutor or attorney general and includes a
10 current or former assistant or deputy United States attorney, county
11 attorney, municipal prosecutor or attorney general.

12 14. "Public defender" means a federal public defender, county
13 public defender, county legal defender or county contract indigent defense
14 counsel and includes an assistant or deputy federal public defender,
15 county public defender or county legal defender.

16 15. "Public official" means a person who is duly elected or
17 appointed to Congress, the legislature, a statewide office or a county,
18 city or town office.

19 Sec. 2. Section 41-162, Arizona Revised Statutes, is amended to
20 read:

21 41-162. Address confidentiality; duties of secretary of
22 state; application assistant; criminal records
23 check

24 A. ~~On or before December 31, 2012,~~ The secretary of state shall
25 establish the address confidentiality program to allow persons who have
26 been subjected to domestic violence offenses, sexual offenses or stalking
27 to keep their residence addresses confidential and not accessible to the
28 general public. Participants in the program shall receive a substitute
29 address that becomes the participant's lawful address of record.

30 B. The secretary of state shall:

31 1. Designate a substitute address for a program participant that is
32 used by state and local government entities as set forth in this section.

33 2. Receive mail sent to a program participant at a substitute
34 address and forward the mail to the program participant as set forth in
35 paragraph 3 of this subsection.

36 3. Receive first-class, certified or registered mail on behalf of a
37 program participant and forward the mail to the program participant for no
38 charge. The secretary of state may arrange to receive and forward other
39 classes or kinds of mail at the program participant's expense. The
40 secretary of state is not required to track or otherwise maintain records
41 of any mail received on behalf of a program participant unless the mail is
42 certified or registered mail.

43 C. Notwithstanding any other law and except as provided by court
44 rule, a program participant may be served by registered mail or by
45 certified mail, return receipt requested, addressed to the program
46 participant at the program participant's substitute address with any

1 process, notice or demand required or allowed by law to be served on the
2 program participant. This subsection does not prescribe the only means,
3 or necessarily the required means, of serving a program participant in
4 this state.

5 D. The secretary of state may designate as an application assistant
6 any person who:

7 1. Provides counseling, referral or other services to victims of
8 domestic violence, a sexual offense or stalking.

9 2. Completes any training and registration process required by the
10 secretary of state.

11 E. Any assistance and counseling rendered by the secretary of state
12 or an application assistant to an applicant related to this section is not
13 legal advice.

14 F. EACH SECRETARY OF STATE EMPLOYEE, APPLICATION ASSISTANT AND
15 VOLUNTEER WHO AIDS THE ADDRESS CONFIDENTIALITY PROGRAM PURSUANT TO THIS
16 SECTION SHALL SUBMIT A FULL SET OF FINGERPRINTS TO THE SECRETARY OF
17 STATE'S OFFICE FOR THE PURPOSE OF OBTAINING A STATE AND FEDERAL CRIMINAL
18 RECORDS CHECK PURSUANT TO SECTION 41-1750 AND PUBLIC LAW 92-544. THE
19 DEPARTMENT OF PUBLIC SAFETY MAY EXCHANGE THIS FINGERPRINT DATA WITH THE
20 FEDERAL BUREAU OF INVESTIGATION.

21 G. NOTWITHSTANDING ANY OTHER LAW, ALL RECORDS AND INFORMATION
22 REGARDING A PROGRAM PARTICIPANT ARE CONFIDENTIAL, ARE NOT PUBLIC RECORDS
23 AND ARE SUBJECT TO DISCLOSURE ONLY BY COURT ORDER AND AS CONSISTENT WITH
24 THIS ARTICLE.

25 Sec. 3. Section 41-166, Arizona Revised Statutes, is amended to
26 read:

27 41-166. Address use by state or local government entities

28 A. The program participant, and not the secretary of state, is
29 responsible for requesting that a state or local government entity use the
30 program participant's substitute address as the program participant's
31 residential, work or school address for all purposes for which the state
32 or local government entity requires or requests the residential, work or
33 school address.

34 B. Except as otherwise provided in this section or unless the
35 secretary of state grants a state or local government entity's request for
36 disclosure pursuant to section 41-167, if a program participant submits a
37 current and valid address confidentiality program authorization card to
38 the state or local government entity, the state or local government entity
39 shall accept the substitute address designation on the card as the program
40 participant's address for use as the program participant's residential,
41 work or school address when creating a new public record. The substitute
42 address given to the state or local government entity is considered the
43 last known address for the program participant used by the state or local
44 government entity until the time that the state or local government entity
45 receives notification pursuant to section 41-164. The state or local
46 government entity may make a photocopy of the card for the records of the

1 state or local government entity and shall immediately return the card to
2 the program participant.

3 C. Except as otherwise provided in this section or by order of the
4 court, if a program participant submits a current and valid address
5 confidentiality program authorization card to the court, the court shall
6 accept the substitute address designation on the card as the program
7 participant's address for use as the program participant's residential,
8 work or school address. The substitute address given to the court is
9 considered the last known address for the program participant used by the
10 court until the time that the court receives notification pursuant to
11 section 41-164. The court may make a photocopy of the card for the court
12 file and shall return the card to the program participant.

13 D. When a person with an existing voter registration record becomes
14 a program participant, the secretary of state shall secure the
15 participant's voter registration record and notify the appropriate county
16 recorder of the participant's secured status, current residence address
17 and substitute address for the county recorder to revise the participant's
18 voter registration record so that the participant's address can be kept
19 confidential in the same manner as prescribed by section 16-153. A
20 program participant who is not already registered to vote may register to
21 vote using the substitute address and must provide the election official
22 with the participant's actual residence address for precinct designation
23 purposes. If the participant registers to vote other than online or at a
24 driver license examination facility, the participant shall present a
25 completed voter registration form with the participant's substitute
26 address and address confidentiality program card to the appropriate
27 election official.

28 E. A designated election official shall use the actual address of a
29 program participant for precinct designation and all official
30 election-related purposes and shall keep the program participant's actual
31 address confidential from the public. The election official shall use the
32 substitute address for all correspondence and mailings placed in the
33 United States mail. The substitute address shall not be used as an actual
34 residence address for voter registration.

35 F. IF A PROGRAM PARTICIPANT WITHDRAWS OR IS CANCELED FROM THE
36 ADDRESS CONFIDENTIALITY PROGRAM, THE SECRETARY OF STATE SHALL PROVIDE
37 NOTICE TO THE APPROPRIATE COUNTY RECORDER AND THE COUNTY RECORDER SHALL
38 UNSEAL THE FORMER PROGRAM PARTICIPANT'S VOTER REGISTRATION RECORD AND THE
39 VOTER REGISTRATION RECORD OF ANY OTHER REGISTERED VOTER WHO RESIDES AT THE
40 RESIDENCE ADDRESS OF THE FORMER PROTECTED PERSON, AND SHALL REMOVE THE
41 SUBSTITUTE ADDRESS AS THE MAILING ADDRESS FOR THE FORMER PROGRAM
42 PARTICIPANT.

43 ~~F.~~ G. A state or local government entity's access to a program
44 participant's voter registration shall be governed by the disclosure
45 process set forth in section 41-167.

1 ~~G.~~ H. A program participant who completes an application to
2 register to vote at a driver license examination facility while receiving
3 a driver license or an identification card is required to have the program
4 participant's actual address on the driver license or identification card.
5 A program participant whose driver license has the substitute address may
6 register to vote, if otherwise eligible, pursuant to subsection E of this
7 section.

8 ~~H.~~ I. The substitute address shall not be used for purposes of
9 listing, appraising or assessing property taxes and collecting property
10 taxes. If a program participant would like to keep records maintained by
11 the county assessor and county treasurer confidential, the program
12 participant shall comply with section 11-484.

13 ~~I.~~ J. If a program participant is required by law to swear or
14 affirm to the program participant's address, the program participant may
15 use the participant's substitute address.

16 ~~J.~~ K. The substitute address shall not be used for THE purposes of
17 assessing any taxes or fees on a motor vehicle or for titling or
18 registering a motor vehicle. Notwithstanding any law to the contrary, any
19 record that includes a program participant's actual address pursuant to
20 this subsection shall be confidential and not available for inspection by
21 anyone other than the program participant.

22 ~~K.~~ L. The substitute address shall not be used on any document
23 related to real property recorded with a recorder. If a program
24 participant would like to keep real property records confidential, the
25 program participant shall comply with section 11-483.

26 ~~L.~~ M. A public school shall accept the substitute address as the
27 address of record and shall verify student enrollment eligibility through
28 the secretary of state. The secretary of state shall facilitate the
29 transfer of student records from one school to another.

30 ~~M.~~ N. Except as otherwise provided in this section, a program
31 participant's actual address and telephone number maintained by a state or
32 local government entity or disclosed by the secretary of state is not a
33 public record that is subject to inspection. This subsection shall not
34 apply to the following:

35 1. Any public record created more than ninety days before the date
36 that the program participant applied to be certified in the program.

37 2. A program participant who voluntarily requests that a state or
38 local government entity use the participant's actual address or
39 voluntarily gives the actual address to the state or local government
40 entity.

41 ~~N.~~ O. For any public record created within ninety days before the
42 date that a program participant applied to be certified in the program, a
43 state or local government entity shall redact the actual address from a
44 public record or change the actual address to the substitute address in
45 the public record, if a program participant who presents a current and
46 valid program authorization card requests the entity that maintains the

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1 public record to use the substitute address instead of the actual address
2 on the public record.

3 Enroll and engross to conform
4 Amend title to conform

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